

		Defendant would be violating her fiduciary duties as a member of the LLC if she diverted business or assets from the LLC. Notably, Defendant's opposition does not argue that the LLC should not be dissolved or that it is unlikely Plaintiff will prevail on his claim for dissolution. Plaintiff has submitted sufficient evidence to demonstrate it is likely he will prevail on his request to dissolve the LLC based on the undisputed evidence that the parties are no longer willing or able to cooperate in operating the LLC. In fact, both parties apparently want to dissolve the LLC but cannot agree on terms of dissolution. Balance of Harms: Plaintiff seeks a broad injunction which not only precludes Defendant from soliciting the LLC's clients but generally prohibits Defendant from "engaging in or soliciting interior design services" at all. Plaintiff contends Defendant's operation of an independent interior design business violates her fiduciary duties to the LLC because the two businesses are competing for a limited number of clients in the region. However, Plaintiff has not submitted substantial evidence that Defendant's interior design business has actually appropriated the LLC's assets or taken any specific client(s). Plaintiff's declaration extensively describes the parties' negotiations to dissolve the LLC, but includes minimal information about Defendant's separate business and its effect on the LLC. At most, Plaintiff has established Defendant sent a holiday card announcing her new business to the LLC's clients. Therefore, Plaintiff has not demonstrated that Plaintiff individually (or the LLC, although the LLC is not a party to this motion) will suffer substantial harm if the motion is denied. On the other hand, broadly prohibiting Defendant from operating her independent business would result in substantial harm by preventing her from pursuing her career and earning a living now that her involvement in the LLC is diminished. Therefore, Plaintiff has not shown that issuance of a preliminary injunction is necessary at this time.
9	23-01360897 <i>Marin-Gonzalez vs. Escalante Morroquin</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Peter E. Garrell to withdraw as attorney of record for Defendant Kimberly Escalante Morroquin is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.

10	24-01401746 <i>Nguyen vs. Mercedes Benz USA, LLC</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production <u>Motion 1</u> Defendant Mercedes-Benz USA, LLC’s Motion to Compel Further Responses to Form Interrogatories, Set One, is DENIED as moot. Defendant moves for an order compelling Plaintiff to serve further verified responses to Form Interrogatories, Set One, Nos. 2.2 and 2.7 and imposing monetary sanctions. On 9/11/25, Plaintiff served supplemental responses and subsequently served verifications. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) On 3/13/26, Plaintiff served verified further supplemental responses. (See Wong Decl., ¶ 9, Exs. 7-10.) Defendant’s reply brief does not identify any specific supplemental responses to the Form Interrogatories at issue that are still deficient. Thus, the motion is moot. Defendant’s request for sanctions is DENIED. Sanctions against Plaintiff are not warranted because Defendant did not make serious attempts to obtain informal resolution prior to filing this motion. Defendant sent a single letter requesting supplemental responses by 9/11/25. (Achatz Decl., ¶¶ 3-4; Wong Decl., ¶ 5, Ex. 3.) Plaintiff did so. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) Instead of making additional attempts to meet and confer after receiving the supplemental responses, Defendant filed these motions three weeks later. (See Wong Decl., ¶ 7.) This was inadequate. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing]. <u>Motion 2</u> Defendant Mercedes-Benz USA, LLC’s Motion to Compel Further Responses to Requests for Production of Documents, Set One, is GRANTED, in part, and DENIED, in part. Defendant moves for an order compelling Plaintiff to serve further verified responses to Production of Documents, Set One, (“RFPs”), Nos.
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